

- withdrawal of opposition or appeal at short notice (see in this chapter III.R.2.4.);
- other cases (see in this chapter III.R.2.5.).

2.1. Late submission of documents and/or requests

Where facts and evidence supporting the opposition are submitted at a late stage in the proceedings and another party incurs considerably higher costs as a result, a different apportionment of the costs may be ordered for reasons of equity (see T.10/82, OJ 1983, 407; T.117/86, OJ 1989, 401; T.101/87, T.326/87, OJ 1992, 522; T.416/87, OJ 1990, 415; T.323/89, OJ 1992, 169; T.596/89, T.622/89, T.503/90, T.611/90, OJ 1993, 50; T.755/90, T.110/91, T.867/92, OJ 1995, 126; T.719/93 and T.970/93). The relevant factor in deciding on the costs is whether or not there are cogent reasons justifying the late submission; it is regarded as irrelevant whether the material in question has any bearing on the merits of the decision. However, it should be pointed out that, in several cases, requests for apportionment of costs have been refused, despite an unjustified delay, because there was no proof that higher costs had been incurred (see, for example, T.212/88, OJ 1992, 28; T.582/90, T.267/92, T.9/95 and T.207/03).

According to board of appeal case law, if a party introduces important facts or evidence at a late stage of the proceedings, without cogent reasons for the delay, this may be taken into account in the apportionment of costs (see T.117/86, OJ 1989, 401; T.326/87, OJ 1992, 522; T.97/90, T.611/90, OJ 1993, 50; T.847/93, T.1016/93, T.574/02, T.931/06, T.493/11). If the reasons for the late citing of a document do not point towards negligence or other circumstances that would amount to an abuse of procedure, there is no reason of equity which would justify an apportionment of costs in the other party's favour (T.1016/93).

Preparations for discussing the admission of late-filed documents into the proceedings during the opposition-appeal proceedings and, if they are admitted, preparations for discussing their relevance in respect of the patentability of the claimed subject-matter are part of the normal work that can be expected of any party and/or its representative (T.1848/12). See similarly T.101/17 for late-filed requests.

In T.1781/13 the board found that, since the EPC did not treat late-filed submissions as automatically inadmissible and the RPBA 2007 similarly did not treat amendments to a case this way, both instead leaving it to the boards to decide on admission at their discretion (Art. 114(2) EPC; Art. 12(4) and 13(1) RPBA 2007), it was clear that a party's amending its case could not be regarded as unfair per se and so held against it. Generally speaking, additional circumstances were therefore needed for equity to dictate ordering a party to pay the other's costs because it had amended its case at a late stage (see also T.467/15). In the case in hand, no such circumstances were apparent to the board and the party requesting that it be awarded costs, although bearing the burden of substantiating that request, had not made a case for them.

2.1.1 Late submission was unjustified

a) Different apportionment of costs ordered

In T. 117/86 (OJ 1989, 401) the appellants had produced, together with their statement of grounds, two new documents and an affidavit in support of the contention that the opposed patent lacked an inventive step. The board concluded that the fact that new documents were presented **after the nine-month period** for filing opposition could itself give rise to additional expenditure for the other party, and that the costs should be apportioned differently for reasons of equity.

The board in T. 416/87, expressly referring to T. 117/86, regarded it as an abuse of the opposition procedure that the appellant had in its statement of grounds of appeal relied exclusively on three new documents and had even raised for the first time the **issue of novelty** on the basis of a document already discussed in the patent in suit. By introducing arguments and documents which bore little relation to the content of those filed in the original opposition, the appellant had produced virtually a new opposition at the appeal stage. This could not, by definition, be the purpose of an appeal. Although the respondent clearly envisaged requesting a decision on costs in the event of oral proceedings only, the abuse of procedure justified the apportionment of costs incurred during the taking of evidence.

The board in T. 83/93 held that it was also an abuse of the appeal procedure to submit **five new documents** as evidence 40 months after the end of the opposition period (without giving reasons) and to revive an objection under Art. 100(c) EPC 1973 on the basis of new facts and evidence 51 months after the end of the opposition period.

In T. 493/11 the respondent introduced important evidence at a late stage of the proceedings, namely only two months before the date of the scheduled oral proceedings, without cogent reasons for the delay and, in particular, without submitting all the necessary information. The board stressed that the **responsibility for stating its complete case** lay exclusively within the respondent's own sphere. As a consequence, any delay causing the incurring of additional costs by the other party remained within the respondent's sphere and liability and, in the case in hand, justified an apportionment of costs.

In T. 867/92 (OJ 1995, 126) the claims had been amended during the opposition proceedings. Eighteen months after the claims had been amended the appellant (opponent) cited in the statement of grounds of appeal a **new prior art** document. The board held that the EPC does not impose a time limit for citing new prior art in response to an amendment of the claims. However, an opponent who cites new prior art with a considerable delay with no special reason justifying the delay runs the risk of having to bear the proprietor's costs incurred in attending oral proceedings which cannot bring the case to an end because of the new citation. However, as there was no suggestion that the appellant (opponent) wilfully abused the procedure in the case at issue, the board considered that it would be equitable to order the appellant to pay only half those costs.

In T.514/01 the board found that the late allegation of **public prior use** during the first oral proceedings before the opposition division had given rise to additional costs because second oral proceedings before the opposition division had been needed to investigate the alleged prior public use.

In T.416/00 the appellant (opponent) submitted a **document** which had been cited in the patent in suit and mentioned in the opposition proceedings but **had never been discussed between the parties** until the appeal proceedings, and had even been expressly excluded before the opposition division. The board found that the opponent's attempt to make surprising use of a document that it had disregarded in the oral opposition proceedings ran counter to the speedy conclusion of the proceedings before the two departments. Even if this was not a deliberate tactic on the opponent's part, the result was the same in terms of the principle of fairness governing proceedings. The respondent's request for a different apportionment of costs was granted.

In T.671/03 document D18 was first filed in the appeal proceedings and deemed to constitute an **amendment to the appellant's submissions** pursuant to Art. 10b RPBA 2003 (Art. 13 RPBA 2007). If it had been filed within the opposition period, there would have been no need to discuss its admission during the oral proceedings in the appeal. The costs for preparing and attending the oral proceedings before the board, which mainly discussed the admission of D18, could have been avoided. For reasons of equity the board ordered a suitably modified apportionment of costs.

In T.1033/09 the oral proceedings had been adjourned following the **admission of an auxiliary request** submitted by the respondent during those proceedings. For the board, there was no doubt that this auxiliary request constituted an amendment to the respondent's case after it had filed its reply to the statement of the grounds of appeal, and so one within the meaning of Art. 13(1) RPBA 2007. The board therefore found it equitable to apportion the costs in the appellant's favour.

Similarly, in T.2165/08 of 6 March 2013 the appellant (patent proprietor) filed its auxiliary requests 1 to 3 **one month before the oral proceedings** and further supporting documents even closer to the oral proceedings. The board stated that it would always be unacceptable for a party to produce evidence without any explanation – unless conceivably its relevance was self-evident. But to produce evidence at the virtual end of the proceedings accompanied only by a statement that the explanation would be provided even later was not only discourteous but a clear, and apparently deliberate, attempt to frustrate the respondent's preparation for the oral proceedings. That was both an act prejudicing the efficient conduct of oral proceedings and an abuse of procedure, which merited an apportionment of costs.

The board in T.874/03 ruled that when late filing of facts and evidence necessitated remitting the case to the department of first instance, the costs of any oral proceedings in the appeal proceedings were normally to be borne by the party responsible for the late filing.

In T.2233/09 the board concluded that it would have been possible for the appellant to submit the evidence necessary to prove transfer of appellant status well ahead of the oral proceedings and that it was its conduct that had caused the adjourning of the oral proceedings. Therefore, for reasons of equity, the respondent's costs for the new oral proceedings had to be borne by the appellant.

In T.1763/12 the board admitted document O6A into the proceedings even though it was filed **only three days before the scheduled date for the oral proceedings**. The appellant (opponent) did not give any reason why document O6A had only been submitted at such a late stage of the proceedings and why it could not have filed this document earlier. The consequence was that the discussion at the oral proceedings before the board was limited to the issue of admittance of O6A without considering any substantive matter. This would have been avoided if the document had been filed earlier. The board held it to be equitable that the expenses incurred by the appellant (patent proprietor) in connection with the oral proceedings be borne by the appellant (opponent).

In T.2549/12 documents which the appellant had filed with its statement of grounds of appeal amounted to new submissions that opened up a new discussion and a fresh case that had not been dealt with in the first-instance decision. The board refused to admit the documents. On the apportionment of costs, the board held that, where an **entirely new case** was first made on appeal (here, through filing the new submissions) and there were no mitigating circumstances that might excuse its being made so late, opportunities to make it at first instance having been missed and no explanation or justification for that being provided, it was appropriate to order a different apportionment of costs within the meaning of Art. 104(1) EPC.

b) No different apportionment of costs ordered – no disadvantage

In T.28/91 three documents which had already been submitted to the opposition division were re-submitted at a later stage in the appeal proceedings. The board ruled that the late submission was not disadvantageous as no new arguments had been introduced, and therefore no additional work had been necessary (see also T.133/06).

In T.525/88 the late filing was unjustified, but the request for apportionment of costs was rejected because the documents were of **no relevance** and did not affect the decision. The same applied in T.534/89 (OJ 1994, 464), T.876/90, T.1714/14. In T.882/91, the board did not look into whether the unjustified late submission had led to higher costs because it was of the opinion that the other party had not had to spend very **much additional time and energy** on the documents which had been submitted late and that there was therefore no reason to apportion costs (see the decisions on similar cases in T.737/89, T.685/91, T.556/90, T.231/90 and T.875/91).

In T.330/88 the respondents filed a new document two days prior to the oral proceedings. The board took the view that the late filing was unjustified but that an apportionment of costs would not be equitable as the appellants had had **sufficient time** to deal with the document, especially since the decision was not taken until four months after the oral proceedings and following the opportunity to present comments.

In T.336/86 the appellants submitted a prior patent belonging to the respondents for the first time in the appeal proceedings, which destroyed the novelty of the patent in suit. The respondents requested an apportionment of costs as the oral proceedings would not have been necessary had the patent been presented earlier. The board agreed that the late submission was not justified and that higher costs had been incurred as a result. However, as the respondents either had – or should have – been aware of the **existence of their own patent**, it took the view that an apportionment of costs was not justified.

In T.931/97 the opponent had submitted new evidence in appeal proceedings, which was already **known** to the patentee from earlier proceedings before the German Patent Office. The board held that where the patentee knew the documents and could assess their prospects a different apportionment of costs was not justified.

In T.1182/01 the board admitted into the appeal proceedings several documents filed late by the appellant and held that its decision to **remit** the case immediately to the department of first instance meant that the respondent had not incurred any undue cost burden in relation to the appeal in hand.

In T.633/05 the appellant referred for the first time in the statement of grounds of appeal to a document which had been cited in the European search report but not considered in the opposition proceedings. In the board's view, the appellant sought to provide new evidence in support of a line of argument already put forward in the opposition proceedings, namely the fact that certain features of the present invention were known in the art. As the said **document was cited in the statement of grounds** of appeal and was anyway part of the examination file, the respondent had had ample time to study the content of this fairly short document and prepare a rebuttal against the appellant's allegation that it disclosed some key features of the contested patent. Thus, the board had no reason to suspect that the appellant's late filing might have been aimed at delaying the appeal proceedings, or that it resulted in the respondent being burdened with unreasonable additional costs.

In T.273/10 the board found that the **opponent had abusively withheld the document** in question, which ought to have been submitted for adversarial scrutiny in good time. However, it also observed that this had not been the only reason why further oral proceedings had been necessary. At the stage when the initial proceedings had been adjourned, it would anyway have been impossible to close them the same day. The board noted that a full day had been needed for the second set of proceedings and, moreover, that continuation of the proceedings had given the proprietor an opportunity to put forward new auxiliary requests. It followed that, since both parties had benefited from the holding of further oral proceedings, it would not be equitable to order the opponent to bear the costs alone.

In T.213/14 the board exercised its discretion under Art. 13(1) RPBA 2007 not to admit auxiliary requests into the proceedings; it also refused a different apportionment of the costs. It held that a proprietor filing new requests in order to defend its position subsequent to oral proceedings being appointed or to receiving a negative preliminary opinion from the board was, with regard at least to the case in hand, not seen as an extraordinary